

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 22, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn (arriving at 6:01 p.m.), Dr. Mark Rinne, Tom Segrave and Jeff White. Absent: Scott Roybal. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Esquibel moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 8, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for the City’s Annual Action Plan for Program Year 2024 prepared by the Cheyenne Housing and Community Development Division. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing. Public comment was made by: Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County, Angie Dorsch, Executive Director, Equal Justice Wyoming and Kristin-Erin Balderaz, Executive Director, Needs, Inc. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Esquibel.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located at Lot 2, Block 1, Q-B Subdivision. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, High Plains Road beginning at South Greeley Highway and terminating at Division Avenue. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Saratoga Street and west of Whitney Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR Agricultural Residential for land annexed to the City of Cheyenne located east of Saratoga Street and south of and adjacent to Laramie Street. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located at 4204 Dell Range Boulevard. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of City MR Medium Density Residential for land annexed to the City of Cheyenne located at 4204 Dell Range Boulevard. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to P Public District for land located at Lot 1, Cheyenne Ice & Events Center, 2nd Filing located at 1530 West Lincolnway. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Comment was made by the following member of the governing body: Dr. Rinne.

ORDINANCE – 1st READING – Amending Sections 1.4.3 Defined Terms and 5.8.8 Accessory Buildings of the Unified Development Code, clarifying Detached Buildings – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending Ordinance No. 4519 amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HI Heavy Industrial, AG Agricultural, and County A-2 to LI Light Industrial for land located west of Burlington Trail and south of and adjacent to HR Ranch Road – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending Subsections 6.5.4.b.3 Incentives / Bonus, 6.5.4.b.4 Creative Sign Program, and 6.5.8.j Billboards of the Unified Development Code, to restructure sign incentives and bonuses by modifying allowances for signs near interstate highways, allowances for shared signs, eliminating the Creative Sign Program, and clarifying applicability of certain billboard allowances – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending Section 5.1.5 of the Unified Development Code to allow for up to three stories for detached dwellings, semi-attached dwellings, and attached dwellings – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending and updating the Solid Waste Fee Schedule in accordance with Section 8.44.010 of the Municipal Code of the City of Cheyenne, Wyoming, and repealing Ordinance No. 4503 – referred to Finance Committee. (Sponsor – Dr. Aldrich)

ORDINANCE –1st READING – Amending Sections 10.82.030 and 10.82.040 of the Municipal Code of the City of Cheyenne, Wyoming, modifying the term of Dockless Vehicle licenses, specifying an effective date and making other conforming amendments – referred to Finance Committee. (Sponsors – Mr. Roybal, Mr. Segrave and Mr. White)

[CA] RESOLUTION – Expressing the support of the Governing Body for the adoption of the Cheyenne/Laramie County Emergency Operations Plan. Motion (per Consent Agenda) carried. (#6398)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Carey Cottages, City of Cheyenne, Laramie County, Wyoming (located southeast of the intersection of Grove Drive and Cheyenne Street). Dr. Rinne moved to adopt with staff recommendations 1 (a) and (b) and 2 (a) and (b) which includes acknowledgements of relief of access to a street for lots less than 36’ wide (Subdivision Standards Waiver) and a reduction in a rear setback (Administrative Adjustment); and prior to recording a 10-foot utility easement be added along Cheyenne Street and a public access easement be added along Cheyenne Street for a 6-foot attached sidewalk, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Brandon Swain, applicant and Dan Dorsch, Vice Chair, Affordable Housing Task Force. (#6399)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Sun Rise Hills North Subdivision, 3rd Filing, City of Cheyenne, Laramie County, Wyoming. Dr. Rinne moved to adopt with staff recommendation to grant the exception to maximum block size, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Public comment was made by: Elizabeth Stapel, Rebecca Murchie, Mark Christensen, AVI, representative for the applicant and Dan Dorsch, Vice Chair, Affordable Housing Task Force. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Dr. Rinne, Mr. Segrave and Mr. White. (#6400)

[CA] RESOLUTION – Adopting the City of Cheyenne 2024 Program Year Annual Action Plan prepared by the City of Cheyenne Housing & Community Development Office – referred to Finance Committee. (Sponsor – Mr. Esquibel)

[CA] RESOLUTION – Approving water and/or sanitary sewer service, by Outside User Agreement, for Robert GrandPre, for the property at Lot 1, Block 1, Green Subdivision, 4th Filing, Laramie County, Wyoming (east of Ridge Road and north of and adjacent to Green Court) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

Professional Services Agreement between the City of Cheyenne and DHM Design PC for engineering services for the 15th Street Master Plan Project (2019-2022 Optional 1% Sales Tax Fund). Reporting for Finance Committee, Mr. White moved to approve in an amount not to exceed \$153,055.00, seconded by Mr. Esquibel. Mr. White moved to amend the funding to come from general reserves, seconded by Mr. Laybourn. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook and Dr. Rinne voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich voting “no”. (#7958)

[CA] Improvement Agreement between the City of Cheyenne and DB Cheyenne, LLC for acceptance of cash-in-lieu for public improvements including a turn lane, as required by the UDC and Traffic Impact Study for the development – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Univerus, Inc., for the Sanitation Rerouting and Optimization Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7775 between the City of Cheyenne and Sunrise Engineering for additional engineering services for the 7th Street Drainage and Access Improvements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7897 between the City of Cheyenne and Richardson Construction, Inc. for the Gymnastics Facility Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration to Purchase for an agreement between the City of Cheyenne and Atmos Technologies, for providing daily cover on the active working face of the City of Cheyenne Happy Jack Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$270,000.00). (#7959)

[CA] Consideration of Bid #S-2-24 for an agreement between the City of Cheyenne and Asphalt Preservation, LLC, for the 2024 Surface Seal Project #1 (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$1,791,141.00). (#7960)

[CA] Consideration of Bid #E-14-24 for 1.5 cubic yard rear-load dumpsters (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted the bid from Kois Brothers Equipment, Commerce City, CO, in an amount not to exceed \$78,360.00).

[CA] Consideration of Bid #E-15-24 for furnishing Bituminous Asphalt Hot Mix, Tack Oil, and Cold Mix on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per consent agenda) carried (accepted the bid from JTL Group Inc. d/b/a Knife River, Cheyenne, for hot mix and cold mix in the amount of \$438,250.00 and from Simon Contractors, Cheyenne, for tack oil in the amount of \$14,400.00 for a total bid of \$453,150.00).

[CA] Consideration of Bid #S-12-24 for an Agreement between the City of Cheyenne and JTL Group Inc. d/b/a Knife River, for the 2024 City Overlay #1 Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-13-24 for an Agreement between the City of Cheyenne and Simon Contractors, for the 2024 City Overlay #2 Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-15-24 for an Agreement between the City of Cheyenne and Asphalt Preservation, LLC, for the 2024 Surface Seal Project #2 (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Retail liquor license transfer of location application filed with the City Clerk's Office for Scooters Scoreboard LLC d/b/a Scooter's Scoreboard Bar, from 507 E. Lincolnway to 619 E. Lincolnway, Cheyenne, WY. Motion (per Consent Agenda) carried.

Retail liquor license transfer of ownership application filed with the City Clerk's Office for Wyoming Pipe Dreams, Inc. d/b/a The Lamp Lounge & Drive Through Package Liquor Store, 101 W. 6th St., Cheyenne, WY (license currently held by W.W. Enterprises, Inc. d/b/a The Lamp Lounge & Drive Through Package Liquor Store). Mr. White moved to approve, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body present. Public comment was made by: Jon Coverdale. Comments were made by the following members of the governing body: Mr. Cook, Mr. Esquibel and Mr. Johnson.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

The following members of the governing body made comments under other business: Mr. Laybourn, Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:31 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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